

26PR00163 Matter of The Whelan Family Trust

County: sonoma

Division: Probate

Hearing date: 2026-09-04

Motion: Petition to Remove Trustee and for Order Collapsing the Bypass Trust

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Petition to Remove Trustee and for Order Collapsing the Bypass Trust

Tentative Ruling: APPEARANCES REQUIRED. The petition before the Court seeks two items of relief: 1) An order that all assets allocable to the Bypass Trust are to be held and administered as part of the Survivor's Trust pursuant to the terms of the Survivor's Trust; and 2) an order removing respondent as co-trustee and confirming petitioner as the sole Trustee of the Trust. The Court signed an order on July 17, 2026, granting the first item of relief. The only remaining issue is whether there is a basis to suspend forthwith, or remove after hearing, respondent co-trustee. Respondent has proposed appointment of a professional fiduciary as an alternative to petitioner acting as sole trustee. Petitioner has indicated there are some new concerns that prevent this from being agreeable, though without any further information about the particulars of those concerns the Court is unable to evaluate the reasonableness of this position. The Court's view is that given the fact this is a distributive trust, and it appears the last settlor died over two years ago, it is reasonable to conclude that administration is not going well. It is also likely that the distribution of the trust will be further delayed pending any evidentiary hearing resolving the present dispute. It would seem appointment of a professional fiduciary would be a reasonable option under these circumstances. If not, then the Court will likely set the matter for a trial date. Of the dates listed in the statements of issues, the Court's calendar would allow the matter to be set on April 30, 2027 for trial to start on May 4, 2027, with a two day time estimate.

As to the question of suspension, as long as the real property assets remain unliquidated, there does not appear to the Court to be any exigency or risk to the trust property justifying suspension. To the extent there are liquid assets, the Court might have a concern about its jurisdiction over the respondent in the event funds were removed to a foreign county. The Court could consider requiring a bond to cover the amount of any liquid assets. But even that seems unnecessary unless the amount of liquid assets exceeds half the value of the real property, such that the remedy of a surcharge could be imposed if necessary at the conclusion of the matter. The Court does not have information to judge this issue, but mentions it in the event a party wishes to be heard.